

FOURTH AMENDMENT TO LEASE AGREEMENT

THIS FOURTH AMENDMENT TO LEASE AGREEMENT (this "Amendment") is made as of the 30th day of September, 2016 by and between **VENABLE CENTER, LLC**, a North Carolina limited liability company ("Landlord"), and **PRECISION BIOSCIENCES, INC.**, a Delaware corporation ("Tenant"), with respect to the following recitals:

(a) Landlord is the current owner of a group of interconnected buildings situated at 302 East Pettigrew Street, Durham, North Carolina known collectively as "Venable Center" (the "Project"), which comprises Dibrell A ("Dibrell A"), Dibrell B ("Dibrell B"), the Receiving Room (the "Receiving Room") and the Prizery (the "Prizery"). The first and second floors of the Prizery are shown in more detail on **Exhibit B** attached hereto and incorporated herein by reference.

(b) Pursuant to that certain Lease Agreement dated April 5, 2010, as modified by a First Amendment to Lease Agreement dated August 19, 2011 and by a Second Amendment to the Lease Agreement dated July 13, 2015 (the "Second Amendment") and by a Third Amendment to the Lease Agreement dated January 12, 2016 (collectively, the "Lease"), Landlord (as successor to Venable Tenant LLC) leases to Tenant certain office space in the Project (the "Current Premises") consisting of approximately 16,701 square feet of rentable area in Dibrell A (Suite A-100 = 8,274 RSF; Suite A-200 = 8,427 RSF, collectively referred to herein as the "Current DA Premises") and 2,863 square feet of rentable area in the Receiving Room (referred to herein as the "Current RR Premises"), as more particularly described in the Lease;

(c) The term of the Lease is currently scheduled to expire July 31, 2021.

(d) Landlord and Tenant have agreed to extend the term of the Lease, to add certain space to the premises demised under the Lease, and to make certain other modifications to the Lease as set forth hereinbelow;

(e) All capitalized terms used in this Amendment that are not otherwise defined herein shall have the meanings ascribed to such terms in the Lease.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Landlord and Tenant agree as follows:

1. The Term of the Lease is hereby extended through July 31, 2024 (the "Expiration Date").

2. Effective as of the respective Expansion Dates set forth below, Landlord hereby leases to Tenant, and Tenant hereby leases from Landlord, the following additional premises in the Project, as outlined on Exhibit A attached hereto:

(a) approximately 11,621 Rentable Square Feet (“RSF”) located in the Receiving Room (the “RR Expansion Premises”). The Expansion Date for the RR Expansion Premises shall be the 150th day following the date that Landlord delivers possession of the RR Expansion Premises to Tenant (in good and tenantable condition, broom clean, with all systems serving same in good working order), which delivery date is anticipated to be September 15, 2016 (resulting in an anticipated Expansion Date of February 15, 2017);

(b) approximately 7,494 RSF located on the 2nd floor of the Prizery (the “PR Second Floor Expansion Premises”), as shown on **Exhibit B**. Tenant acknowledges that certain portions of the PR Second Floor Expansion Premises are currently vacant and other portions of the PR Second Floor Expansion Premises are currently occupied by various tenants. Landlord shall deliver possession of each portion of the PR Second Floor Expansion Premises to Tenant as such portion of the PR Second Floor Expansion Premises is vacant and available to be delivered to Tenant (but, so long as Tenant does not commence the conduct of business in any portion of the PR Second Floor Expansion Premises, such partial delivery shall not trigger commencement of the term with respect to the same, nor commencement of the Base Rent “clock,” as Tenant will be unable to commence its construction activities until the full floor is delivered in accordance with this Amendment; however, if Tenant commences the conduct of business in any portion of the PR Second Floor Expansion Premises, then the term will commence with respect to all portions of the PR Second Floor Expansion Premises that have been delivered to Tenant). Landlord agrees to endeavor in good faith to terminate or relocate the existing tenants of the PR Second Floor Expansion Premises, so as to deliver possession of each portion of the PR Second Floor Expansion Premises to Tenant as promptly as practicable. The Expansion Date with respect to the entire PR Second Floor Expansion Premises (unless occurring sooner with respect to portions of the PR Second Floor Expansion Premises pursuant to the foregoing provisions of this Section 2(b)) shall be the thirtieth (30th) day following the date that possession of the entire PR Second Floor Expansion Premises is delivered to Tenant (in good and tenantable condition, broom clean, with all systems serving same in good working order);

(c) approximately 7,416 RSF on the first floor of Dibrell B (the “DB First Floor Expansion Premises”). Tenant acknowledges that the DB First Floor Expansion Premises is currently occupied by a tenant whose lease term expires June 30, 2019, but that such current tenant may be induced to vacate the DB First Floor Expansion Premises sooner than such scheduled lease expiration date. Tenant will take possession of the DB First Floor Expansion Premises as soon as such space is vacant and available. The Expansion Date for the DB First Floor Expansion Premises shall be the 90th day following the date that Landlord delivers possession of the DB First Floor Expansion Premises to Tenant (in good and tenantable condition, broom clean, with all systems serving same in good working order). Rent shall be paid on the same terms (on a per square foot basis) as the RR Expansion Premises;

(d) approximately 7,416 RSF on the second floor of Dibrell B (the “DB Second Floor Expansion Premises”). Tenant acknowledges that the DB Second Floor Expansion Premises is currently occupied by a tenant whose lease term expires June 30, 2019.

Landlord will use best efforts to cause the current tenant of the DB Second Floor Expansion Premises to vacate such space as soon as possible; provided that Landlord shall not be obligated to offer such current tenant any payment or other economic inducement to vacate such space prior to the expiration of such current tenant's lease term. Tenant will take possession of the DB Second Floor Expansion Premises as soon as such space is vacant and available. The Expansion Date for the DB Second Floor Expansion Premises shall be the 30th day following the date that Landlord delivers possession of the DB Second Floor Expansion Premises to Tenant (in good and tenantable condition, broom clean, with all systems serving same in good working order). Rent shall be paid on the same terms (on a per square foot basis) as the PR Second Floor Expansion Premises;

3. Base Rent with respect to each Expansion Premises shall be as set forth in the following tables:

RR Expansion Premises (11,621 SF)

<u>Months Following RR Expansion Premises Expansion Date</u>	<u>Annual Base Rent per Rentable Square Foot (NNN)</u>	<u>Monthly Rent</u>
	\$19.25	
1 - 12	\$19.78	\$18,642.02
13 - 24	\$20.32	\$19,155.29
25 - 36	\$20.88	\$19,678.23
37 - 48	\$21.46	\$20,220.54
49 - 60	\$22.05	\$20,782.23
61 - 72	\$22.65	\$21,353.59
73 - 84	\$23.28	\$21,934.64
85 - Expiration Date		\$22,544.74

PR Second Floor Expansion Premises (or respective portions thereof) (7,494 SF)

<u>Months Following PR Second Floor Expansion Premises Expansion Date</u>	<u>Annual Base Rent per Rentable Square Foot (FS)</u>	<u>Monthly Rent</u>
1 - 12	\$25.00	\$15,612.50
13 - 24	\$25.69	\$16,043.41
25 - 36	\$26.39	\$16,480.56
37 - 48	\$27.12	\$16,936.44
49 - 60	\$27.87	\$17,404.82
61 - 72	\$28.63	\$17,879.44
73 - 84	\$29.42	\$18,372.79
85 - Expiration Date	\$30.23	\$18,878.64